

C.P. and Berar Expiring laws Continuance and Amending Act, 1947

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Central Provinces And Berar - Act

C.P. and Berar Expiring laws Continuance and Amending Act, 1947

CENTRAL PROVINCES AND BERAR

India

C.P. and Berar Expiring laws Continuance and Amending Act, 1947

Act 48 of 1947

Published on 11 September 1947

Commenced on 11 September 1947

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C.P. and Berar Expiring laws Continuance and Amending Act, 1947

(CPB. Act No. 48 of 1947)

For Statement of Objects and Reasons, see Central Provinces and Berar Gazette, dated the 11th September, 1947, Part II, page 271. For proceedings in Assembly, see Central Provinces and Berar Legislative Assembly Proceedings, 1947, Volume IV, pages 15 to 17 of No. 10, dated 21st October, 1947.

An Act to continue certain expiring laws and to amend certain laws Preamble.

Whereas the Acts mentioned in the Schedules to this Act, enacted by the Governor of the Central Provinces and Berar during the period of Proclamation under section 93 of the Government of India Act, 1935, are, in so far as they are in force and are temporary in their duration, limited to expire on the 26th day of April, 1948 by virtue of paragraph 6 of the India (Provisional Constitution) Order, 1947;

And whereas it is expedient to provide for the continuance, as in this Act mentioned, of those Acts and of the

enactments amending or affecting the same;

It is hereby enacted as follows :-

1.

Short title, extent and commencement.

(1)

This Act may be cited as the [Central Provinces and Berar]

[These words were inserted by Central Provinces and Berar Act XVI of 1948, Section 2.]

Expiring Laws Continuance and Amending Act, 1947.

(2)

It extends to the [whole of Vidarbha region of the State of Maharashtra]

[Substituted by A. O. 1950.]

,

(3)

It shall come into force on the 27th day of April, 1948.

2.

Continuance of Acts in the Schedule.

(1)

The Acts mentioned in the First Schedule shall to the extent specified in column (4) of that Schedule be continued after the 26th day of April, 1948.

(2)

The Acts specified in the Second Schedule shall be amended in the manner set forth in the second column of that Schedule.

3.

Removal of doubt.

- For the removal of doubt it is hereby declared that -

(i)

any amendment made in any principal Act by any amending Act specified in the First Schedule; and

(ii)

any action taken or thing done or omitted to be done under, and any consequence ensured by virtue of, any provision made in any Act specified in the First Schedule,

shall be of full effect and shall continue in force until any such Act is amended or repealed hereafter and any such action or thing is superseded by fresh action or thing taken or done hereafter.

First Schedule

Year

Number of Act

Title

Extent of continuance

(1)

(2)

(3)

(4)

1940

V of 1940

The Central Provinces and Berar Co-operative Societies
(Amendment) Act.

The whole Act

1940

VI of 1940

The Central Provinces and Berar Relief of Indebtedness
(Amendment) Act.

The whole Act except sections 3, 4, 5 and 8

1940

XII of 1940

The Central Provinces and Berar Local Self-Government
(Amendment) Act.

The whole Act

1940

XIII of 1940

The Central Provinces and Berar Tobacco (Amendment) Act.

The whole Act except clause (1) of section 2 and sections 3,
4, 6 and 8.

1940

XIV of 1940

The Central Provinces and Berar Money-lenders (Amendment)
Act.

The whole Act

1940

XV of 1940

The Central Provinces and Berar Prisons (Amendment) Repealing
Act.

The whole Act

1940

XVI of 1940

The Central Provinces and Berar Court-fees (Amendment) Act.

The whole Act

1940

XVII of 1940

The Nagpur Improvement Trust (Amendment) Act.

The whole Act

1941

I of 1941

The Central Provinces and Berar General Clauses (Amendment)
Act.

The whole Act

1941

III of 1941

The Central Provinces and Berar Co-operative Land Mortgage
Banks (Amendment) Act.

The whole Act

1941

V of 1941

The Central Provinces and Berar Relief of Indebtedness
(Amendment) Act.

The whole Act except sections 2 and 4.

1941

VI of 1941

The Central Provinces and Berar Co-operative Societies
(Amendment) Act.

The whole Act

1941

VIII of 1941

The Central Provinces Tenancy (Amendment) Act.

The whole Act

1941

IX of 1941

The Central Provinces and Berar Court-fees (Amendment) Act.

The whole Act.

1941

XI of 1941

The Central Provinces and Berar Vidya Mandir (Amendment) Act.

The whole Act.

1941

XV of 1941

The Berar Laws (Provincial) Act.

The whole Act except entries regarding Act V of 1920 and Act

VII of 1933 in Part B (ii) of the First Schedule.

1942

XVI of 1941

The Khandwa Municipality (Validation of Tax) Act.

The whole Act.

1942

II of 1942

The Central Provinces Land Revenue (Amendment) Act.

The whole Act.

1942

IV of 1942

The Central Provinces and Berar Finance (Amendment) Act.

The whole Act.

1942

V of 1942

The Central Provinces Land Revenue (Second Amendment) Act.

The whole Act.

1942

VI of 1942

The Central Provinces and Berar Hindu Women's Rights to
Property (Extension to Agricultural Land) Act.

The whole Act.

1942

VII of 1942

The Central Provinces and Berar Special Armed Constabulary
Act.

The whole Act.

1942

XI of 1942

The Central Provinces and Berar Relief of Indebtedness
(Amendment) Act.

The whole Act.

1942

XII of 1942

The Berar Land Revenue Code (Amendment) Act.

The whole Act.

1942

XIII of 1942

The Central Provinces and Berar Tobacco (Amendment) Act.

The whole Act except section 2.

1943

XIV of 1942

The Central Provinces and Berar Borstal (Amendment) Act.

The whole Act.

1943

I of 1943

The Bear Land Revenue Code (Amendment) Act.

The whole Act.

1943

II of 1943

The Central Provinces and Berar Relief of Indebtedness
(Amendment) Act.

The whole Act. The whole Act except section 2.

1943

VI of 1943

The Central Provinces and Berar Tobacco (Amendment) Act.

The whole Act.

1944

II of 1944

The Central Provinces and Berar Regulation of Couching Act.

The whole Act.

1944

IV of 1944

The Central Provinces and Berar Municipalities (Amendment)
Act.

The whole Act.

1944

V of 1944

The Central Provinces and Berar Prohibition (Amendment) Act.

The whole Act.

1944

VI of 1944

The Berar Land Revenue Code (Amendment) Act.

The whole Act.

1944

VII of 1944

The Nagpur Improvement Trust (Amendment) Act.

The whole Act.

1945

I of 1945

The Central Provinces Land Revenue (Amendment) Act.

The whole Act.

1945

III of 1945

The Nagpur Improvement Trust Tribunal (Validation of
Proceedings) Act.

The whole Act.

1945

IV of 1945

The Central Provinces and Berar Epidemic Diseases (Amendment) Act.

The whole Act.

1945

VII of 1945

The Central Provinces and Berar Local Self-Government (Amendment) Act.

The whole Act.

1945

VIII of 1945

The Central Provinces Land Revenue (Second Amendment) Act.

The whole Act.

1945

IX of 1945

The Central Provinces and Berar Courts (Amendment) Act.

The whole Act.

1945

X of 1945

The Central Provinces and Berar Co-operative Societies Amendment and Liquidators' Orders Validation Act.

The whole Act.

1945

XI of 1945

The Central Provinces Irrigation (Amendment) Act.

The whole Act.

1945

XII of 1945

The Nagpur Improvement Trust (Amendment) Act.

The whole Act.

1945

XIII of 1945

The Central Provinces Tenancy (Amendment) Act.

The whole Act.

1946

I of 1946

The Central Provinces Land Revenue (Amendment) Act.

The whole Act.

1946

II of 1946

The Berar Land Revenue Code (Amendment) Act.

The whole Act.

1946

IV of 1946

The Central Provinces and Berar Debt Conciliation (Amendment) Act.

The whole Act.

1946

V of 1946

The Central Provinces and Berar Religious and Charitable Trust (Amendment) Act.

The whole Act.

[1946

[These entries were omitted by Central Provinces and Berar Act XVI of 1948, Section 3.]

VI of 1946

The Central Provinces and Berar Agriculturists' Loans
(Amendment) Act.

The whole Act.

1946

VII of 1946

The Central Provinces Tenancy (Amendment) Act.

The whole Act.]

1946

VIII of 1946

The Berar Patels and Patwaris Law (Amendment) Act.

The whole Act.

Second Schedule

Name of Act

Amendments

(1)

(2)

1.

The Central Provinces and Berar Sales of Motor Spirit and
Lubricants Taxation Act, 1938 (XIV of 1938).

(1)

In clause (a) of section 2, the words "or the same Act
as applied to Berar" shall be omitted.

(2)

In sub-section (2) of section 10, section 12, section 13,
sub-section (2) of section 15 and in sub-section (2) of section
16, the words "or the same Code as applied to Berar"
shall be omitted.

2.

The Central Provinces and Berar Indian Stamp (Amendment) Act,
1939 (VI of 1939).

(1)

In section 2, the words "and the same Act as applied to
Berar" shall be omitted.

(2)

In section 12, sub-section (2) shall be omitted.

3.

The Central Provinces and Berar Entertainments Duty Act, 1936
(XXX of 1936).

After sub-section (1) of section 3, the following sub-section
shall be inserted, namely:-

"(1-A) In every case in which the payment for admission
involves a fraction of an anna the amount of such payment for
purposes of entertainments duty shall be deemed to be the amount
arrived at by regarding the fraction as a whole anna".

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